



TriageCounsel

Contracts aren't collections of independent clauses.

Clause-by-clause review checks each provision against a standard and moves on. It doesn't check whether the provisions agree with each other. A liability cap and its indemnification carve-out can each look acceptable — or each get flagged — without anyone checking whether they're consistent. A termination right for non-payment can conflict with a dispute-withholding clause three pages away. Clause-level review alone doesn't answer whether independently evaluated provisions remain consistent with one another.

Policy before prompting.

Evidence before assertion.

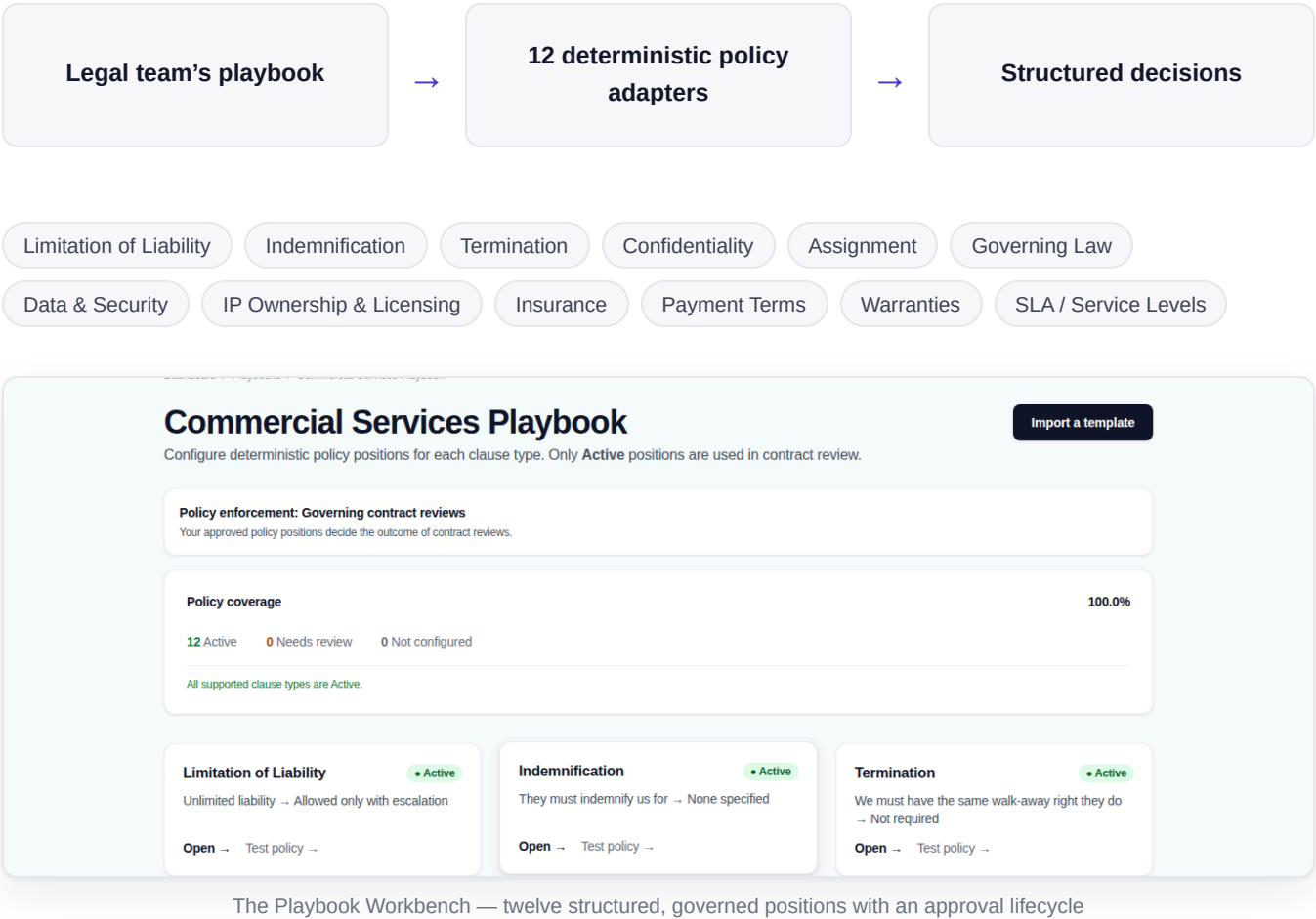
Determinism where the organization has already decided.

Judgment where it hasn't.



An approved playbook, not a prompt.

Legal teams encode their actual contracting positions — preferred terms, acceptable ranges, negotiation thresholds, prohibited positions, fallback language, escalation rules, and which side of the transaction each position applies to. Positions move through a governed lifecycle: Draft → Needs Review → Approved → Active. Editing an active position creates a new revision; it never silently changes the policy used for a prior review.



Two flagged clauses. One connected reason.

On a real SEC-filed Master Services Agreement, the Limitation of Liability adapter and the Indemnification adapter each independently flag their clause for redline. Reviewed separately, that's where it would stop — two items on a list, no connection between them. TriageCounsel's Interaction Engine checks whether the two decisions are consistent with each other, and finds they aren't: the liability clause treats gross-negligence claims ambiguously, while the indemnification clause exposes the Provider without a matching carve-out for that category. Neither clause's individual result resolves the question — the two have to be read together.

Cross-policy interaction · Limitation of Liability × Indemnification

Hyperscale_Data_Alliance_Cloud_Services_MSA_ex10_1.txt CRITICAL RISK In Review · 0 of 82 resolved

NEGOTIATE Insurance Commercial General Liability: addressed; Workers' Compensation: addressed — policy allows up to See configured policy
Commercial Services Playbook — Insurance (policy position #6)

NEGOTIATE Payment Terms Trigger: invoice — policy allows up to See configured policy
Commercial Services Playbook — Payment Terms (policy position #4)

ACCEPT Warranties No warranty categories established — policy allows up to Meets policy
Commercial Services Playbook — Warranties (policy position #12)

REQUIRES REVIEW SLA Could not be reliably established — policy allows up to N/A
Commercial Services Playbook — SLA / Service Levels (policy position #5)

General findings (not anchored to a specific passage)

Liability/Indemnification: ambiguous shared-category treatment — REQUIRES REVIEW

Document

EX-10.1 2 ex10_1.htm EXHIBIT 10.1 Exhibit 10.1 Confidential portions of this exhibit have been omitted because they are both (i) not material and (ii) are the type of information that the registrant treats as private or confidential. The redacted terms have been marked at the appropriate place with "[***]." MASTER SERVICES AGREEMENT ALLIANCE CLOUD SERVICES, LLC , AS PROVIDER AND [***] , AS CUSTOMER Property: 415 E. Prairie-Ronde Street Dowagiac, Michigan Dated: June 23, 2026 TABLE OF CONTENTS ARTICLE 1 SERVICES, LICENSE, TERM, SERVICE CHARGES 3 ARTICLE 2 USE AND OCCUPANCY; CUSTOMER'S EQUIPMENT 5 ARTICLE 3 ALTERATIONS 6 ARTICLE 4 CONDITION OF THE SERVICE AREA; INITIAL WORK 7 ARTICLE 5 REPAIRS AND MAINTENANCE; FLOOR LOAD 8 ARTICLE 6 UTILITY EXPENSES 9 ARTICLE 7 LEGAL REQUIREMENTS 9 ARTICLE 8 MORTGAGES; SUBORDINATION; ESTOPPEL CERTIFICATES; EQUIPMENT LIENS 10 ARTICLE 9 SERVICES 11 ARTICLE 10 INSURANCE 14 ARTICLE 11 DESTRUCTION OF THE PROPERTY; LOSS OR DAMAGE 15 ARTICLE 12 EMINENT DOMAIN 16 ARTICLE 13 ASSIGNMENT AND SUBLICENSING 16 ARTICLE 14 ACCESS TO SERVICE AREA 20 ARTICLE 15 CERTIFICATE OF OCCUPANCY 20 ARTICLE 16 DEFAULT 21 ARTICLE 17 REMEDIES 22 ARTICLE 18 FEES AND EXPENSES 23 ARTICLE 19 NO REPRESENTATIONS BY PROVIDER 24 ARTICLE 20 END OF TERM; EQUIPMENT REMOVAL 24 ARTICLE 21 SERVICE AVAILABILITY 24 ARTICLE 22 NO WAIVER, NON-LIABILITY 25 ARTICLE 23 WAIVER OF TRIAL

NEEDS REVIEW DEPENDENCY

Liability/Indemnification: ambiguous shared-category treatment — REQUIRES REVIEW
IX_LIABILITY_INDEMNITY_CATEGORY_AMBIGUOUS

Verify

Participating clauses: Limitation of Liability, Indemnification

Acknowledge Dismiss

Comment

Why this decision?

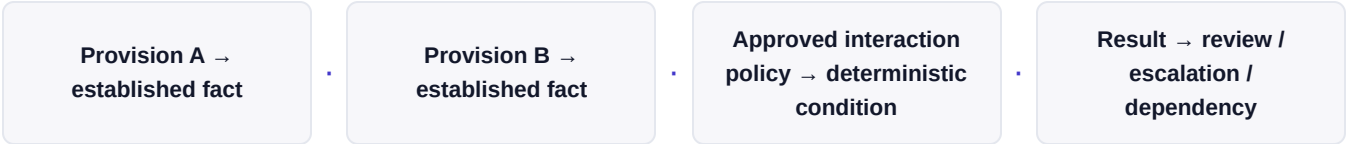
Contract evidence

Interaction rule 4 of 7 (Liability × Indemnification category ambiguity). Verified against a 54-case, 65-assertion adversarial benchmark for this rule set: zero false interactions, zero missed high-risk interactions in that test suite.

Demonstrated using a real, unmodified SEC filing — Alliance Cloud Services, LLC Master Services Agreement, filed as Exhibit 10.1 to Hyperscale Data, Inc.'s Form 8-K, June 2026. No party to the agreement, and neither the SEC nor Hyperscale Data, Inc., endorses or is affiliated with TriageCounsel.

Not “trust the AI.” Inspect the decision.

Every material decision carries its own chain: contract language, structured fact, playbook position, decision, required action. TriageCounsel does not ask a language model to decide whether two provisions interact — the interaction is evaluated from structured facts the deterministic policy engines already established, the same facts a lawyer could independently verify by reading the cited section.



TriageCounsel does not ask an LLM to decide whether the provisions interact. The interaction is evaluated from structured facts already established by the deterministic policy engines.

The full reasoning panel for this finding — participating clauses, why the decision was reached, and the cited contract evidence, all in one place.

NEEDS REVIEW

DEPENDENCY

Liability/Indemnification: ambiguous shared-category treatment — **REQUIRES REVIEW**

IX LIABILITY_INDEMNITY_CATEGORY_AMBIGUOUS

Verify

Participating clauses: Limitation of Liability, Indemnification

Acknowledge

Dismiss

Comment

c

Why this decision?

Limitation of Liability and/or Indemnification treat the following category ambiguously (carve-out language that could not be reliably classified): gross negligence. Whether these two clauses' positions interact cannot be determined until that ambiguity is resolved.

Contract evidence

Interaction requires attention

the Limitation of Liability provision at character 78424 gross negligence or willful misconduct of the released party. Notwithstanding anything to the contrary contained in this Agreement, in no event shall either party's aggregate liability to the other party for claims arising from such party's gross negligence or willful misconduct exceed an amount equal to the aggregate Recurring

Section 13.2 – Customer indemnifies Provider Provider shall exercise its option under Section 13.2 hereof, Customer shall indemnify, defend and hold harmless Provider against and from any and all losses, liabilities, damages, costs

Why this matters Limitation of Liability and/or Indemnification treat the following category ambiguously (carve-out language that could not be reliably classified): gross negligence. Whether these two clauses' positions interact cannot be determined until that ambiguity is resolved.

Required action Manual review required – resolve the ambiguous gross negligence carve-out language before this interaction can be evaluated.

Hyperscale_Data_Alliance_Cloud_Services_MSA_ex10_1.txt CRITICAL RISK In Review · 1 of 82 resolved

Full Report & Audit Trail ? 81 item(s) need a decision Finalize Review

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NEGOTIATE	Payment Terms	Trigger: invoice — policy allows up to See configured policy	Commercial Services Playbook — Payment Terms (policy position #4)
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General findings (not anchored to a specific passage)

62 Liability/Indemnification: ambiguous shared-category treatment — REQUIRES REVIEW

Document

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.. All findings

NEEDS REVIEW **DEPENDENCY**

Liability/Indemnification: ambiguous shared-category treatment — REQUIRES REVIEW

IX_LIABILITY_INDEMNITY_CATEGORY_AMBIGUOUS_SHARED_CATEGORY_TREATMENT_REQUIRES_REVIEW

Verify

Participating clauses: Limitation of Liability, Indemnification

This interaction depends on Limitation of Liability, which has changed since the interaction was evaluated.

Dismiss

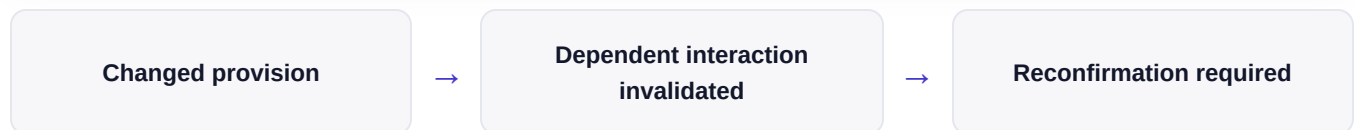
Acknowledge

Dismiss

Comment c

> Why this decision?

> Contract evidence



- **Unrelated decisions remain intact.**

What the lawyer actually gets.

PASSED AUTOMATICALLY

Matches the approved position. Doesn't consume review time.

NEGOTIATION REQUIRED

Outside the preferred position, but within an established negotiation path.

CROSS-POLICY CONFLICT

Individually fine or individually flagged — inconsistent together.

HUMAN JUDGMENT REQUIRED

Evidence is ambiguous or insufficient; the system abstains rather than guesses.

Provider (or upon any successor-in-interest after the sale, conveyance, assignment or transfer by

Hyperscale_Data_Alliance_Cloud_Services_MSA_ex10_1.txt CRITICAL RISK In Review · 1 of 82 resolved

Full Report & Audit Trail ? 81 item(s) need a decision Finalize Review

accrued prior to such sale, conveyance, assignment or transfer. Prior to any such sale, conveyance, assignment or transfer, the [REDACTED] liability of Provider for Provider's obligations under this Agreement shall be limited to Provider's interest in the Building (and the proceeds of any insurance or condemnation award with respect thereto) and Customer shall not look to any other property or assets of Provider or the property or assets of any of the Exculpated Parties (defined below) in seeking either to enforce Provider's obligations under this Agreement or to satisfy a judgment for Provider's failure to perform such obligations. (b) Notwithstanding anything contained in this Agreement to the contrary, Customer shall look solely to Provider to enforce Provider's [REDACTED] obligations hereunder and no partner, shareholder, member, manager, director, officer, principal, beneficial owner, employee or agent, directly and indirectly, of Provider (collectively, the "Exculpated Parties") shall be personally liable for the performance of Provider's obligations under this Agreement. Customer shall not seek any damages against any of the Exculpated Parties. (c) Notwithstanding anything elsewhere in this Agreement, except as expressly provided in Article 28, under no circumstances shall either Provider or Customer be liable to the other for any [REDACTED] consequential damages or lost profits. (d) Whenever in this Agreement it is provided that Provider shall not be liable to Customer, the same shall be deemed and interpreted to mean and include that Provider shall not be liable for its negligence or that of its agents, contractors, licensees, employees, servants or invitees, unless and only to the extent that it is specifically and expressly stated that Provider shall be liable for such negligence. Section 31.2 Arbitration of Reasonableness Matters. (a) Wherever in this Agreement Provider's Approval is required or as to any other Reasonableness Matter, if Provider shall refuse such Approval, Customer in no event shall be entitled to make, nor shall Customer make, any claim, and Customer hereby waives any claim, for money damages (nor shall Customer claim any money damages by way of set-off, counterclaim or defense) based upon any claim or assertion by Customer that Provider unreasonably withheld or unreasonably delayed its Approval in any one instance or for any other Reasonableness Matter. Customer's sole and exclusive remedy as to such a claim or assertion shall be the expedited arbitration procedure set forth in Section 31.2(b). 28 (b) If there is a dispute between Provider and Customer as to: (i) the reasonableness of either party's refusal to grant its Approval to any matter as to which such party has expressly agreed to be

Review Queue 1/82 resolved

7 need attention

3 Prohibited / Must Redline / Escalate 3 Negotiate

1 Needs Review 3 Passed 1 Cross-Policy Interaction

PLAYBOOK EXCEPTIONS

MUST REDLINE Limitation of Liability Applied (edited)

Counterparty: Limitation-of-liability clause present but no numeric general cap stated

Your playbook: 6x annual fees

→ Redline — Insert the approved cap language

MUST REDLINE Indemnification

Counterparty: Exposure: unspecified; Protection: present

Your playbook: 6x annual fees

→ Contract language: "Provider shall exercise its option under Section 13.2 hereof, Customer shall indemnify, defend and hold harmless Provider against and from any and all losses, liabilities, damages, costs", exposure obligation states no monetary treatment at all. Result: MUST_REDLINE.

MUST REDLINE IP Ownership & Licensing

Counterparty: Exclusivity: exclusive

Your playbook: See configured policy

→ Replace clause — apply the approved fallback IP ownership/license language: policy requires us to own work product/deliverables, but no ownership statement was found in the clause; policy requires a license to use background IP embedded in deliverables, but none was found; policy requires a perpetual license, but the clause provides no stated duration;

Review by exception — the four states above, live, on a real contract

TriageCounsel doesn't try to eliminate judgment — contract negotiation depends on leverage, business priorities, and context that isn't reducible to rules. It automates the decisions the legal team has already made, detects when those decisions interact, preserves the evidence behind each one, and routes genuine judgment calls to a lawyer instead of manufacturing certainty.

TRY TO BREAK IT

Give us a contract and the playbook you actually use.

Let's see where deterministic enforcement holds — and where TriageCounsel correctly decides a lawyer should take over.

Policy before prompting.

Evidence before assertion.

Determinism where the organization has already decided.

Judgment where it hasn't.

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